

**SUBSTITUTE FOR
SENATE BILL NO. 959**

A bill to amend 1993 PA 354, entitled
"Railroad code of 1993,"
(MCL 462.101 to 462.451) by adding sections 280, 281, 282, 283,
284, and 285.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

Sec. 280. As used in this section and sections 281 to 285:

(a) "Class I carrier", "class II carrier", and "class III
carrier" mean those terms as defined in 49 CFR part 1201.

(b) "Defect" includes hot wheel bearings, hot wheels,
defective bearings that are detected through acoustics, dragging
equipment, excessive height or weight, shifted loads, low hoses,
rail temperature, and wheel condition.

(c) "Office" means the office of rail in the state



1 transportation department.

2 (d) "Wayside detector system" means an electronic device or a
3 series of connected devices that scan passing trains, rolling
4 stock, on-track equipment, and component equipment and parts for
5 defects.

6 Sec. 281. (1) The office shall work with each railroad that
7 does business in this state to ensure that wayside detector systems
8 are installed and are operating along railroad tracks on which the
9 railroad operates and to ensure that the railroad and wayside
10 detector systems meet all of following standards:

11 (a) Each wayside detector system is properly installed,
12 maintained, repaired, and operational in accordance with sections
13 282 to 284 and the latest guidelines issued by the United States
14 Department of Transportation, the Federal Railroad Administration,
15 and the Association of American Railroads.

16 (b) An expired, nonworking, or outdated wayside detector
17 system or component part of a wayside detector system is promptly
18 removed and replaced with a new part or an entirely new system that
19 reflects the current best practices and standards of the industry.

20 (c) The distance between each wayside detector system is
21 appropriate when accounting for the requirements of sections 282 to
22 284, the natural terrain surrounding the railroad track on which
23 the railroad operates, and the safety of the trains, rolling stock,
24 on-track equipment, operators, passengers, and the individuals and
25 property in the vicinity of the railroad track so that if defects
26 are detected there is sufficient time to do all of the following:

27 (i) Respond to the alerts given by the wayside detector system.

28 (ii) Stop the train, rolling stock, or on-track equipment, if
29 necessary.



1 (iii) Make all necessary repairs or, if repair is impossible at
2 the location, remove the component parts or equipment that has a
3 defect.

4 (d) The railroad has defined, written standards and training
5 for its employees pertaining to wayside detector system defect
6 alerts, the course of action that employees are required to take to
7 respond to an alert, and appropriate monitoring and responses by
8 the company if employees fail to take the required course of
9 action.

10 (2) If a railroad refuses to work or otherwise cooperate with
11 the office in good faith under this section, the office shall
12 investigate that railroad's safety practices and standards in
13 accordance with 49 CFR part 212. The office shall determine whether
14 the company appears to be in compliance with federal railroad
15 safety laws in accordance with 49 CFR part 209.

16 (3) If a railroad does not appear to be in compliance with the
17 applicable federal standards based on an investigation conducted
18 under subsection (2), not later than 60 days after the conclusion
19 of the investigation, the office shall make a report to the Federal
20 Railroad Administration detailing the results of the investigation
21 and recommend that the Federal Railroad Administration take
22 appropriate enforcement actions against the railroad for the safety
23 violations discovered through that investigation. The office shall
24 send a copy of the report to the governor, the senate majority
25 leader, the speaker of the house of representatives, and the
26 minority leaders of both the senate and the house of
27 representatives.

28 Sec. 282. (1) Except as otherwise provided in this section,
29 any person responsible for installing a wayside detector system



1 alongside or on a railroad track shall ensure that each wayside
2 detector system is located at the following distance along the
3 track from the nearest wayside detector system:

4 (a) For a class I carrier railroad, not more than 15 miles.

5 (b) For a class II carrier railroad or class III carrier
6 railroad, not more than 35 miles.

7 (2) If the natural terrain or any other reason does not allow
8 for the placement of a wayside detector system in compliance with
9 subsection (1) (a) or (b), the wayside detector system may be
10 located not more than an additional 5 miles from the nearest
11 wayside detector system than the maximum distance allowed under
12 subsection (1) (a) or (b).

13 (3) A class II carrier railroad or class III carrier railroad
14 must, before installing a wayside detector system further than the
15 maximum distance allowed under subsection (1) (a) or (b), submit to
16 the office a written explanation for the deviation.

17 Sec. 283. If a wayside detector system detects a defect in a
18 passing train, rolling stock, on-track equipment, or its component
19 equipment and parts, the operating crew must be immediately
20 notified of the defect.

21 Sec. 284. Sections 280 to 283 do not apply to a railroad track
22 owned or leased by a class II carrier railroad or class III carrier
23 railroad that has a speed limit of 25 miles per hour or less.

24 Sec. 285. (1) By not later than December 31, 2028, the office
25 shall complete a report on train derailments in this state using
26 statistics from the Federal Railroad Administration to identify
27 derailments due to bearing or axle failure that occurred during the
28 3 years preceding the effective date of the amendatory act that
29 added this section.



1 (2) The office shall send a copy of the report to the
2 governor, the senate majority leader, the speaker of the house of
3 representatives, and the minority leaders of both the senate and
4 the house of representatives.